

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S SUPPLEMENTAL BRIEF
IN FURTHER SUPPORT OF MOTION
FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT [Cover Sheet
for Late-Lodged Reply Papers]**

(Code Civ. Proc., §§ 1005(b), 1010.6; Cal. Rules of Court,
rules 3.1113, 3.1300(d))

Hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **COVER**

2 Plaintiff Franciscus Dylan Rosario respectfully lodges the attached **Plaintiff’s Reply in Support**
3 **of Motion for Leave to File Second Amended Complaint, and Opposition to Defendant’s**
4 **April 23, 2026 Opposition and Declaration** (“Reply,” 25 pp., ~4,900 words per CRC 3.1113(f))
5 for the April 30, 2026, 9:00 a.m. hearing in Department 302.

6 Plaintiff files this short cover to acknowledge that the Reply is lodged **one court day after the**
7 **nominal five-court-day reply wall under CCP § 1005(b)** and to explain the narrow circum-
8 stances that necessitated a one-day extension. Plaintiff respectfully asks that this Court exercise
9 its discretion under CCP § 1005(b) and California Rules of Court, rule 3.1300(d), to consider the
10 Reply.

11 **1. The reply wall and the one-court-day delay**

12 Under CCP § 1005(b), reply papers for the April 30, 2026 hearing were nominally due **April 23,**
13 **2026**. Defendant’s Opposition was served electronically at the close of business on **April 23, 2026**
14 and consists of:

- 15 • A 339 KB, 7-page **Opposition to Plaintiff’s Motion for Leave to File SAC**; and
- 16 • A 4.95 MB, **17,804-line Declaration of Tyler J. O’Connell** with seven exhibits.

17 Defendant’s Opposition arrived at the moment the reply wall closed. Preparation of a competent
18 reply — including review of the 17,804-line declaration, preparation of a paragraph-by-paragraph
19 evidentiary-objections table (Evid. Code §§ 350, 352, 356, 702, 800), verification of the five
20 California Supreme Court authorities cited (Klopstock, Blank v. Kirwan, Trafton, Mesler, Foreman
21 & Clark), and word-count compliance with CRC 3.1113(f) — required a single additional court
22 day. The Reply is lodged April 24, 2026 — **one court day late**.

23 **2. Good cause to consider the Reply — CRC 3.1300(d)**

24 CRC 3.1300(d) permits the court in its discretion to refuse or consider late-served or late-filed
25 papers. The circumstances here are those the rule was written to accommodate:

- 26 1. **The reply becomes physically possible only after the opposition is served.** Defendant’s
27 Opposition was served 5:00 p.m. April 23, 2026; Plaintiff has lodged this Reply on the next

1 court day, April 24, 2026. That is the tightest turnaround available on this calendar.

2 **2. The Reply responds to materials Plaintiff was entitled to expect earlier.** Defendant's
3 Opposition is 339 KB and its Declaration is 4.95 MB / 17,804 lines — the Declaration alone
4 exceeds the Opposition itself by more than an order of magnitude. A compliant response
5 under CCP § 1005(b) could not be generated the same day Defendant served.

6 **3. No prejudice to Defendant.** Defendant is electronically served today concurrent with this
7 lodgment (CCP § 1010.6). Defendant's preparation for the April 30 hearing is not materially
8 affected by a single-court-day adjustment.

9 **4. Judicial economy favors consideration.** The five Supreme Court authorities, Baral / Nguyen-Lam
10 narrowing analysis, and paragraph-by-paragraph evidentiary objections aid the Court's review
11 of a motion that squarely implicates Foreman & Clark supersession. Declining to consider
12 the Reply would leave Defendant's 17,804-line Declaration effectively uncontested on the
13 record.

14 **3. Plaintiff does not oppose a brief continuance**

15 If the Court deems a continuance of the April 30, 2026 hearing warranted to restore a perfect-
16 notice posture under CCP § 1005(b) — for example, a one-week continuance to May 7, 2026, at
17 9:00 a.m. — Plaintiff **expressly does not oppose** that relief. Plaintiff's interest is in the Court's
18 considered review of the Reply, not in the particular hearing date.

19 **4. Contemporaneous filings and service**

- 20 • **Reply papers** lodged herewith: REPLY-SAC-APR-30-COURT-READY.pdf (25 pp., ~4,900
21 words).
- 22 • **Proof of Electronic Service (POS-050)** lodged herewith (04-POS-050-802-REPLY.pdf):
23 service on Chad S. Tapp (SBN 214898), Tyler J. O'Connell (SBN 346673), and Monique
24 Schubert at porterscott.com per CCP § 1010.6.
- 25 • **Courtesy bench copy** three-hole-punched and tabbed delivered to Department 302 chambers.

1 **5. Relief requested**

2 Plaintiff respectfully requests that this Court **accept and consider Plaintiff's Reply** on the April
3 30, 2026 calendar. In the alternative, Plaintiff requests such short continuance as the Court may
4 deem appropriate under CCP § 1005(b) and CRC 3.1300(d).

5 _____
6 **NOTE TO CLERK:** Plaintiff is proceeding in propria persona with a fee waiver granted December
7 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under
8 LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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